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**GOVERNMENT OF THE PUNJAB
LAW AND PARLIAMENTARY AFFAIRS DEPARTMENT**

**NOTIFICATION
(170 of 2024)**

28 NOVEMBER 2024

Notification No.334EDH/EPA/F-24/2024, dated 18.11.2024 issued by the Environmental Protection Agency, Punjab, is hereby published in the Punjab Gazette (Extraordinary) for general information:

**"GOVERNMENT OF THE PUNJAB
ENVIRONMENTAL PROTECTION AGENCY
PUNJAB**

Dated Lahore, the 18th November, 2024

NOTIFICATION

No.334EDH/EPA/F-24/2024.- In exercise of the powers conferred under section 33 of the Punjab Environmental Protection Act, 1997 (XXXIV of 1997), the Environmental Protection Agency, Punjab, with the approval of the Government, is pleased to make the following amendments in the Punjab Environmental Protection (Production and Consumption of Single-Use Plastic Product) Regulations 2023, with immediate effect:

AMENDMENTS

In the Punjab Environmental Protection (Production and Consumption of Single-Use Plastic Product) Regulations 2023:

1. In regulation 2, in sub-regulation (1):
 - (a) after clause (a), the following shall be inserted:

"(aa) "administrative penalty" means the penalty as specified in the Schedule-VII;"
and
 - (b) after clause (g), the following shall be inserted:

"(gg) "distributor" means a person engaged in storage and distribution of single-use plastic product;"
2. In regulation 3, after sub-regulation (2), the following shall be inserted:

"(3) In case of any violation of the regulations, the Director General or authorized officer, as the case may be, subject to notice of seven days, may impose the administrative penalty."
3. In regulation 4:
 - (a) in sub-regulations (1) and (2), after the expression "producer," the expression "distributor," shall be inserted; and
 - (b) in sub-regulations (5) and (8), for the word "shall", the word "may" shall be substituted.
4. In regulation 6:
 - (a) in clause (a), at the end, for the "semi-colon", the "colon" shall be substituted, and thereafter, the following shall be inserted:

"Provided that this requirement shall not be applicable upon food and pharmaceutical products,"; and

(b) clause (b) shall be omitted.

5. In regulation 10: -

(a) in sub-regulation (2):

(i) in clause (b), at the end, the word "and" shall be omitted; and

(ii) in clause (c), at the end, for the "full stop", the expression "; and" shall be substituted, and thereafter, the following shall be inserted:

"(d) seize or seal the premises and confiscate the material."; and

(b) after sub-regulation (4), the following shall be inserted:

"(5) The material seized or confiscated under this regulation shall be disposed of in the manner as provided under the Act.".

6. After regulation 10, the following shall be inserted:

"10A. Seal.- (1) Upon contravention of any of the prohibition as mentioned under regulation 3 of the regulations, the authorized officer shall seal the manufacturing works, sale-point, delivery, collection and transportation forthwith, with assistance of the District Police Officer concerned under intimation to the Director General.

(2) The authorized officer shall affix a copy of the sealing order at the premises, sealed under sub-regulation (1), bearing the sealing stamp thereon.

(3) Prior to proceeding under sub-regulation (4), the authorized officer may, on the application of the proprietor supported with affidavit to submit complete report within seven days of the sealing order made under sub-regulation (2), allow reasonable time to the proprietor for disposal of the stock:

Provided that the reasonable time shall be allowed for one time only.

(4) In case of finding of below the standard or illegally manufactured, produced, stored, transported and displayed material, the proprietor or manufacturer or any individual may voluntarily surrenders to the authorized officer against a proper inventory and receipt and submits himself an undertaking on a stamp paper that he shall not repeat the prohibited acts, the district in-charge of the Agency may, on specified conditions, de-seal the premises under intimation to the Director General.

(6) Any proprietor or manufacturer or Individual being aggrieved by any order or direction of the authorized officer may prefer an appeal with the Environmental Tribunal within thirty days of the date of

communication of the impugned order or direction to such person.”.

7. After regulation 14, the following shall be inserted:

“15. District Plastic Management Committee.-

(1) The Department shall notify the District Plastic Management Committee for each District.

(2) The District Plastic Management Committee shall consist of:

(a)	Deputy Commissioner	Chairperson
(b)	District Police Officer	Member
(c)	District Officer of the Industries, Commerce, Investment and Skills Development Department	Member
(d)	District in-charge of the Punjab Food Authority	Member
(e)	Chief Officer of the District Council	Member
(f)	Chief Executive Officer, Waste Management Company concerned	Member
(g)	President Lahore Chamber of Commerce and Industries, Lahore or his nominee	Member
(h)	one representative from the persons engaged in plastic business to be nominated by the Chairperson	Member
(i)	Chief Executive Officer, District Education Authority	Member
(j)	Chairman, Market Committee	Member
(k)	District Officer Environment	Member/ Secretary
(l)	any other member to be co-opted by the committee	Member

(3) The District Plastic Management Committee shall:

- (a) monitor and oversee all the affairs related to implementation of the regulations;
- (b) compile data of all activities including registration as well as punitive and other actions taken under the regulations;
- (c) facilitate the registration of producer, distributor, consumer, collector and recycler of single-use plastic product as mentioned under the regulations;
- (d) promote public awareness and education regarding plastic waste reduction and recycling initiatives;
- (e) identify and collaborate with relevant stakeholders to ensure effective plastic waste management practices;
- (f) facilitate availability of alternate options to replace plastic bags in the local market;
- (g) keep liaison with the elected representatives; and
- (h) ensure implementation of the regulations in letter and spirit.

(4) The District Plastic Management Committee shall hold its meetings at least once in a month."

8. In **SCHEDULE-I**:

(a) at Sr. No. 7, for the existing entry, the following shall be substituted:

"7 Disposable cups and glasses made from polystyrene (Styrofoam)";

(b) at Sr. No. 11, for the existing entry, the following shall be substituted:

"11 Disposable food boxes made from polystyrene (Styrofoam)"; and

(c) the existing entry at Sr. No. 14 shall be omitted.

9. In **SCHEDULE-II**:

(a) at Sr. No. 1, in clause (i), after the word "thickness", the expression "and not less than 12X16 inches in size" shall be inserted; and

(b) for Sr. No. 2, the following shall be substituted:

"2	Packaging (Multilayered and others) except food and pharmaceutical products	(i) Being not less than [Forty] 40 microns in thickness with effect from the date of commencement of the regulations; (ii) The Government may, if needed, alter the thickness in accordance with its policy/strategy."
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10. In **Schedule-III**, under the heading "**REGISTRATION FORM**":

(a) for the sub-heading, the following shall be substituted:

"**Application for Registration of Producer/Distributor/Consumer/Collector/Recyclers**"; and

(b) after the existing entries under the heading "**RECYCLER**", the following shall be inserted:

"DISTRIBUTOR.

The criteria for registration of the Distributor shall be notified by the Provincial Agency."

11. For **SCHEDULE-IV**, the following shall be substituted:

"SCHEDULE-IV

(REGISTRATION FEE)			
Sr. No.	Category	Company/ Corporation/ Partnership	Individual/ Proprietorship

1.	Producer:		
	(a) upto 5 machines	Rs. 50,000/-	Rs. 50,000/-
	(b) from 6 to 10 machines	Rs. 100,000/-	Rs. 100,000/-
	(c) more than 10 machines	Rs. 300,000/-	Rs. 300,000/-
2.	Distributor	Rs. 200,000/-	Rs. 100,000/-
3.	Consumer	Rs. 200,000/-	Rs. 100,000/-
4.	Collector	Rs. 1000/-	Rs. 500/-
5.	Recycler	Rs. 50,000/-	Rs. 25,000/-
(RENEWAL FEE)			
Sr. No.	Category	Company/ Corporation/ Partnership	Individual/ Proprietorship
1.	Producer:		
	(a) upto 5 machines	Rs. 25,000/-	Rs. 25,000/-
	(b) from 6 to 10 machines	Rs. 50,000/-	Rs. 50,000/-
	(c) more than 10 machines	Rs. 150,000/-	Rs. 150,000/-
2.	Distributor	Rs. 100,000/-	Rs. 50,000/-
3.	Consumer	Rs. 100,000/-	Rs. 50,000/-
4.	Collector	Rs. 500/-	Rs. 250/-
5.	Recycler	Rs. 25,000/-	Rs. 12,500/-

12. After **SCHEDULE-VI**, the following shall be inserted:

"SCHEDULE-VII

Sr. No.	Nature of violation	Amount of administrative penalty (in Rupees)	
		1 st Occurrence	2 nd Occurrence
1.	Production, Distribution, Consumption and Storage of Ear Buds with	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-

	Plastic sticks		
2.	Production, Distribution, Consumption and Storage of Plastic sticks for balloons	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
3.	Production, Distribution, Consumption and Storage of plastic flags	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
4.	Production, Distribution, Consumption and Storage of candy sticks	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
5.	Production, Distribution, Consumption and Storage of ice-cream sticks	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
6.	Production, Distribution, Consumption and Storage of disposable cups, plates and glasses made from polystyrene (Styrofoam)	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
7.	Production, Distribution, Consumption and Storage of wrapping or Packing Films around sweet boxes	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
8.	Production, Distribution, Consumption and Storage of Invitation Cards	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
9.	Production, Distribution, Consumption and Storage of disposal Food Boxes made from polystyrene (Styrofoam)	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
10.	Production, Distribution, Consumption and Storage of Cigarette Packets	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
11.	Production,	Rs. 5,000/-	Rs. 21,000/-

	Distribution, Consumption and Storage of Plastic or PVC banners less than 80 microns	to Rs. 20,000/-	to Rs. 50,000/-
12.	Production, Distribution, Consumption and Storage of Plastic Carry/Shopping Bags in violation of description mentioned in the Schedule-II	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
13.	Packaging (Multilayered and others), except food and pharmaceutical products in violation of description mentioned in the Schedule-II	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-
14.	Waste Disposal Bags (Non-Risk) in violation of description mentioned in the Schedule-II	Rs. 5,000/- to Rs. 20,000/-	Rs. 21,000/- to Rs. 50,000/-

DIRECTOR GENERAL
GOVERNMENT OF THE PUNJAB
ENVIRONMENTAL PROTECTION AGENCY,
PUNJAB"

(MUHAMMAD ASIF BALAL LODHI)
SECRETARY

Government of the Punjab
Law and Parliamentary Affairs Department